

21 SEPTEMBER 2026

The click is the agreement, and nothing opens before it

Terms of Use for 4ormiq.com, the notice beside "I understand" that makes pressing it an agreement, and a fix so a fast check can no longer open its result before the reader has agreed. The text is not advice from a lawyer and needs counsel before it is relied on.

WHAT YOU ASKED FOR

A release from liability

Given as far as the law allows it.
A blanket release is the clause a court strikes.

WHAT IT HANGS ON

"I understand", every check

The terms named beside the button, readable in the card, version printed on the result.

WHAT WAS BROKEN

A result could open first

A check that landed before the click opened its result behind the card. Fixed.

WHAT IS OPEN

Counsel

Four authorities could not be read at source. Named below.

01 Why the release is not "all liability"

You asked for terms that release 4orm Finance from all liability. The terms go as far as the law allows and stop there, for one reason: **a clause that claims more than the law allows can be struck against a consumer, and a struck clause protects nothing.** A release written to the limit of what is enforceable is worth more than one written past it.

Quebec is the clearest case, and it is the one I could read in the statute itself.

"Any stipulation whereby a merchant is liberated from the consequences of his own act or the act of his representative is prohibited."

Consumer Protection Act, CQLR c P-40.1, s 10. legisquebec.gouv.qc.ca

"Any stipulation that obliges the consumer to refer a dispute to arbitration, that restricts the consumer's right to go before a court, in particular by prohibiting the consumer from bringing a class action, or that deprives the consumer of the right to be a member of a group bringing a class action is prohibited."

Consumer Protection Act, CQLR c P-40.1, s 11.1. legisquebec.gouv.qc.ca

"Any stipulation under which a merchant may amend a contract unilaterally is prohibited unless the stipulation also (a) specifies the elements of the contract that may be amended unilaterally; (b) provides that the merchant must send to the consumer, at least 30 days before the amendment comes into force, a written notice ..."

Consumer Protection Act, CQLR c P-40.1, s 11.2 (opening words). legisquebec.gouv.qc.ca

What the terms do with each one

RULE	HOW THE TERMS MEET IT
s 10, no release for our own acts	The limit of liability applies "as far as the law allows", keeps our responsibility for our own intentional or grossly negligent acts, and has its own Quebec section saying nothing frees us from the consequences of our own acts.
s 11.1, no arbitration, no class waiver	There is no arbitration clause and no class action waiver anywhere in the terms, and section 10 of the terms says so in those words.
s 11.2, no change at any time	There is no right to change the terms. Each check is its own agreement, made under the version shown when "I understand" is pressed, and a new version applies only to checks made after it is published. Nothing already agreed is ever changed.

02 How the click becomes the agreement

A click binds somebody only if they were told what it meant before they made it, could read what they were agreeing to, and could not reach the thing it governs without making it. All three now hold, and each has a test.

CONDITION	WHAT THE PAGE DOES	TEST
Told before the click	"By pressing I understand you agree to the Terms of Use, version 1.0, for this check", above the button.	termscheck
Could read them	"Terms of Use" opens the full text inside the card, scrollable, with the button still under it. It does not leave the card.	termscheck
Could not skip it	The result opens only from "I understand". Every check reopens the card and asks again.	termscheck
Holds the record	The result and every PDF pack print "Terms of Use version 1.0, agreed at 14:02 on 21 September 2026".	termscheck

Two things found while building it

A fast check opened its result before the agreement. When the check landed, the page opened the result whether or not "I understand" had been pressed. On a normal check nobody noticed, because the reader agrees long before the check lands. On a quick one the result was drawn behind the card before the reader had agreed to anything. It now waits for the click. Reverting the fix makes `termscheck` fail.

A link out of the card would have gone round it. The usual way to open a document leaves the waiting screen, and the way back from a document during a check goes straight to the result. A Terms link that worked like the others would have let a reader reach the result without pressing "I understand". So the Terms open inside the card, and the links inside that copy are turned into plain text.

What is recorded, and what is not

The version and the time are printed on what the reader takes away. They are not stored against the reader, because there is no account to store them against and the privacy notice says we keep nothing that identifies one. The proof that every result was agreed to is the flow itself: the page cannot show a result without the click, and a test fails if that stops being true.

03 What could not be confirmed

Only the three Quebec sections above were read at source. The sites that publish the rest refused a direct read, and I did not quote them from memory. Counsel should confirm each one against the terms before they go live.

AUTHORITY	WHY IT MATTERS HERE	STATUS
Tercon Contractors v British Columbia, 2010 SCC 4	The test a Canadian court applies before it enforces a clause excluding liability.	NOT READ
Uber Technologies v Heller, 2020 SCC 16	When a standard form contract is unconscionable. The limitation and the misuse clause in section 04 of the terms should be read against it.	NOT READ
Douez v Facebook, 2017 SCC 33	A consumer's own province and courts can override a forum clause. Section 10 of the terms is written to give that way already.	NOT READ
Alberta Consumer Protection Act, RSA 2000 c C-26.3	Whether its rules on unfair practices and waiver reach a free service.	NOT READ
Civil Code of Quebec, art 1474	The general Quebec limit on excluding liability for intentional or gross fault.	NOT READ

Questions for counsel

1. Is a clickwrap agreement enforceable on a free service with no account, where the page is the only evidence of the flow?

2. Does section 04, forbidding a result being used to judge an individual for hiring, lending, insurance or tenancy, need anything more under provincial consumer reporting law?
3. Should the terms carry a narrow indemnity for misuse under section 04? It is left out, because against a consumer it is the clause most likely to read as unconscionable.
4. Does the Quebec section need a French version before it can be relied on in Quebec?

04 The terms, as the reader sees them

Version 1.0, in force from 21 September 2026. Reading grade 7.9, reading ease 72, no dashes, no banned words.

01 The short version

4ormlQ is a research tool. It is not advice. We read public records about a business and show you what they say, with the source and the date beside every line. We do not tell you whether to send money, and we do not recommend or endorse anyone.

The decision is yours, and so is the risk. Public records can be wrong, late or incomplete, and a record we could not reach is not a clean one. Before you send money, check the business with its regulator yourself, and speak to a licensed adviser if the amount matters to you.

Pressing **I understand** on a check means you have read and agree to these terms for that check. If you do not agree, do not use the result.

02 What 4ormlQ is, and what it is not

IT IS NOT ADVICE

Not financial, investment, legal, tax or insurance advice, and not a recommendation to deal or not to deal with anyone. We are not registered to give advice and we do not.

IT IS NOT A REGULATOR

We do not license, investigate or supervise anyone. Where a result points at a regulator, the regulator's own record is the authority, not our page.

IT IS NOT A GUARANTEE

A green result never means we have certified a business or that your money is safe with them. It means the records we reached showed nothing against them on the day we read them.

IT IS NOT A FINDING OF WRONGDOING

A red result means the records we read contradict each other, or contradict what the business says about itself. It is not a legal finding and it is not an accusation against anybody.

03 Where the information comes from

Everything on a result comes from somebody else: a regulator, a court, a company registry, a caution list, a review platform, a domain record. **We do not write those records and we cannot correct them.** They can be out of date, wrong, or about a different business with a similar name.

We name every source and link to it so you can open it and read it yourself. Where a register would not answer, or we did not ask it, the result says so. **An absence is not proof.** A business can be missing from every register because it is new, because it trades under another name, or because nobody has reported it yet.

Some regulators do not allow their words to be copied into a service like ours. For those we describe what the entry

04 How you may use a result

A result is for your own decision about a business you are thinking of dealing with. You may share it with your bank, your card issuer, the police, a regulator, a lawyer or a family member helping you decide. **You agree not to:**

REPUBLISH IT AS FACT

Post it, or present it to others, as a statement that a business has done something wrong. It is a record of what sources said on one day, not a conclusion.

USE IT AGAINST SOMEONE

Use it to harass, threaten, shame or make demands of a business or anybody connected to one.

USE IT TO JUDGE A PERSON

Use it to decide whether to hire, lend to, insure or rent to an individual. It is not built for that and must not be used for it.

OVERLOAD OR COPY THE SERVICE

Run checks by script or in bulk, get around the limits on how many checks a connection may run, copy the service, or try to reach any part of it you were not given.

We may refuse or pause checks from a connection that does any of these.

05 What we are responsible for, and what we are not

We will run each check as described, show you what we read and where we read it, and say plainly what we could not reach.

As far as the law allows, 4orm Finance is not responsible for any loss that comes from using, or relying on, a result. That includes money you send or do not send, a deal you make or do not make, and anything a business you checked does or fails to do. It includes records published by others that turn out to be wrong, and websites we link to that we do not run.

The service is free and is provided as it is, without any promise that it will be accurate, complete, available or suited to your purpose.

Nothing in these terms takes away a right the law gives you that cannot be taken away by agreement. We do not limit our responsibility for our own intentional or grossly negligent acts, or for anything else the law says we cannot limit. Where a limit in this section is not allowed where you live, it does not apply to you, and the rest of these terms still do.

06 If you live in Quebec

The Quebec *Consumer Protection Act* gives you rights these terms cannot reduce. In particular, nothing here frees us from the consequences of our own acts or the acts of those working for us, and nothing here requires you to go to arbitration, stops you going to court, or stops you taking part in a class action.

07 If a result is wrong about you or your business

Tell us. We read every message and we answer. If a record we showed is about a different business, or a source has since changed, we will correct what we show. If you represent a business and want your side printed beside an entry, we will print it. The route and the times are set out in the [compliance statement](#). Write to compliance@4ormiq.com.

08 Your privacy

There are no accounts. We do not keep what you typed and we do not keep the result. What we do keep, and why, is set out in the [privacy notice](#), which forms part of these terms.

09 When these terms change

Each check is made under the version of these terms shown when you press **I understand**, and that version is printed on the result. If we change the terms, the new version applies only to checks made after it is published. A check you have already made stays under the terms it was made under.

10 The law that applies

These terms are governed by the laws of Alberta and the federal laws of Canada that apply there. If the consumer protection law of the province where you live gives you more protection, or lets you bring a claim in your own province, that law and those courts apply to you. **There is no arbitration clause and no waiver of class actions in these terms.**

If a court decides that part of these terms cannot be enforced, the rest still applies.

11 Who we are

4ormIQ is run by 4orm Finance, of Calgary, Alberta. Questions about these terms go to compliance@4ormiq.com.